

Mohsin Siddique v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 30 October 2015 · Writ-C No. 59086 of 2015 · **Writ disposed; petitioner relegated to clause 6.5(b) bill complaint.**

HEADNOTE

A consumer disputing the correctness or accuracy of an electricity bill has a complaint remedy under clause 6.5(b) of the U.P. Electricity Supply Code, 2005. The High Court did not examine the bill in writ and relegated the petitioner to that forum, directing the Executive Engineer to consider and decide the complaint in accordance with law.

FACTUAL SUMMARY

Mohsin Siddique petitioned the Allahabad High Court challenging the accuracy and correctness of a bill raised for consumption of electrical energy. The respondents were the State of Uttar Pradesh and officers of Purvanchal Vidyut Vitran Nigam Limited at Ghazipur, including the Executive Engineer, Electricity Distribution Division-II. After hearing counsel for the petitioner and for the licensee, the Court disposed of the writ, leaving the petitioner to complain of the bill before that Executive Engineer.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

disputed-bill-complaint

HOLDING

Where a consumer disputes the correctness or accuracy of an electricity bill, the remedy is a complaint to the competent authority under clause 6.5(b) of the U.P. Electricity Supply Code, 2005; the writ was disposed with liberty to file that complaint, and the Executive Engineer was directed to consider and decide it in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OR ACCURACY OF THE DISPUTED ELECTRICITY BILL

Merits of the bill challenge were left to the Executive Engineer under clause 6.5(b). ¶ 1